



File No: EXP202300791

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant), upon learning that her data had been registered in a solvency file due to a debt, sent a letter to SOLUCIONES DIGITALES CRX S.L. (hereinafter, the respondent) requesting "(...) all the necessary documentation informing me of the reason for such a claim and how this amount has been generated, principal, applied interest, commissions, etc., in order to verify that they conform to the original signed contract, of which I also request a copy. (...)", as well as the precautionary removal of her data from such files, indicating that she has not received the legally established response.

She attaches, along with her complaint letter, a copy of the request and proof of its sending, dated November 2, 2022.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The respondent states, in summary, that they sent an email to the claimant indicating "(...) That all the information is available in her email, to which all information related to the contract has been sent. That we acknowledge receipt of her request for removal, which cannot be processed while the loan remains unpaid, and that we will be happy to proceed with the removal as soon as she settles her debt."

Furthermore, the respondent states that "As of today, we have not received a rejection of the email sent, which we understand to mean the successful delivery of the message. Attached is documentation proving the receipt and sending of the documentation."

On January 31, 2023, the client made a payment of XXXX euros that settled the outstanding amount.

As of today, she is not included in any delinquency file for the amount owed to our entity.

A list of emails sent/responded to by the client regarding her debt or payment method is attached."

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THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the claimant. Consequently, on March 22, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection decided to admit the complaint for processing, as it is considered that the respondent has not adequately addressed the exercise of the right of access.

The aforementioned agreement granted the respondent a hearing, so that within a period of fifteen working days, they could present any allegations they deemed appropriate, stating, in summary, that "(...) All communications have been made to the email account that the client indicated in her loan application.

- This email was verified/validated by the client when she wrote to us from that account.

(...) To that email:

- Information requests related to her applications have been sent, which she has responded to.

- Contracts have been sent as her applications were registered and the client accepted the Terms and Conditions.

- Notifications of cancellation of existing loans have been sent.

- When she defaulted, she was informed at all times of the evolution of her debt and specifically:

- ☐ She was informed of the inclusion in the delinquency register.
- ☐ She was informed of the initiation of legal actions.
- ☐ She was informed of the payment method for settling the debt.
- ☐ She was informed of the moment when the entry was removed.

(...) We attach a copy of the message sent, which she claims not to have received, and the original Gmail message with detailed information about the sending and receipt of the message.

(...) The client settled her debt on January 31, 2023, having made a payment of XXXX euros that cleared the outstanding amount. As of today, she is not included in any delinquency file for the amount owed to our entity."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that within a period of fifteen working days, she may formulate any allegations she considers appropriate, not having submitted any allegations within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Likewise, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to demonstrate that the respondent had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on March 22, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to...

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specify the "data or processing activities referred to in the request." The right will be understood as granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the data subject chooses a means other than that offered, which incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

V

Right to restriction of processing

Article 18 of the GDPR, which regulates the right to restriction of the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following applies:

a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;

b) the processing is unlawful and the data subject opposes the deletion of the personal data and requests instead the restriction of its use;

c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of claims;

d) the data subject has objected to the processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for their storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or to protect the rights of another natural or legal person or for important public interest reasons of the Union or of a particular Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the restriction is lifted."

It should be noted that the right to restriction of processing enables the claimant to limit the processing of data when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has opposed the processing, while verifying whether the legitimate grounds of the controller prevail over those of the claimant.

VI

Conclusion

Article 4 of the GDPR, Definitions, provides that:

"For the purposes of this Regulation, the following shall be understood as:

1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)"

In the case analyzed, from the examination of the documentation provided, it has been established that the claimant exercised the rights of access and restriction.

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Regarding the right of access, the entity responded indicating "(...) that all the information is available in their email, to which all information related to the contract has been sent.

From this response, it can be inferred that the requested information was not provided, "(...) how this amount was generated, principal, applied interest, fees, etc., (...)" thus proceeding with the acceptance

of the claim submitted to this Agency.

The right of access is the right that data subjects have to know what data is being processed by the data controller, the data subject to processing, the purpose of this processing, the source of the data, and whether it has been or will be communicated to third parties. As a general rule, the copy or access to documents or specific information does not form part of the content of the right of access regulated in the current data protection legislation, with

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independence from any other regulations that may support the obtaining of such documentation, this Agency lacking the authority to analyze it.

Consequently, the present claim is upheld.

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Regarding the right to restriction, the respondent denied the request due to an outstanding debt, which has been claimed judicially. Therefore, none of the conditions of Article 18 of the GDPR are met.

It should be noted that the right to restrict processing allows the claimant to have the processing of personal data restricted when the accuracy of the personal data is contested, for a period that allows the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has objected to the processing, while it is verified whether the legitimate grounds of the controller override those of the claimant.

Regarding the veracity of the debt, as well as other financial issues arising from the contractual relationship, it should be noted that it exceeds the jurisdiction of the Spanish Data Protection Agency to resolve the conflict underlying between the parties, nor to make assessments regarding the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be pursued before the competent administrative or judicial bodies.

Notwithstanding the above, during the processing of this procedure, "(...) The client canceled their debt on 31-01-2023; the client has made a payment of XXXX euros that settled the outstanding amount. As of today, they are not included in any delinquency file for the amount owed to our entity."

Consequently, the claim presented is dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that there has been a violation of the provisions of Article 15 of the GDPR, and to instruct SOLUCIONES DIGITALES CRX S.L. with NIF B86429362, to send the claimant a certification addressing the requested right or to deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in this resolution, within ten working days following the notification of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO DISMISS the claim made by Ms. A.A.A. against SOLUCIONES DIGITALES CRX S.L. concerning Article 18 of the GDPR.

THIRD: TO NOTIFY this resolution to Ms. A.A.A. and to SOLUCIONES DIGITALES CRX S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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